

GUIDE · TRUST FUNDING

Funding your trust: *why, what, when, how.*

An unfunded trust is a beautifully drafted set of pages that does almost nothing. Funding is the step that makes the plan real.

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Premier Estate Planning · Tampa, Florida · Reading 7 minutes · Updated Spring 2026 · [premier.law](#)

Funding means transferring ownership of your appropriate assets into your trust — making the trust the owner of record, with you as its trustee and manager. Until that happens, the protections you signed up for sit on the shelf.

Why funding matters

1. The asset — and your estate — can avoid the probate court process.
2. A properly funded trust saves your loved ones time and money.
3. It gives your successor trustee a clean, efficient administration.
4. Distributions are made according to the terms you set.
5. It can extend additional asset protection to your beneficiaries.

What it means to fund a trust

Funding re-titles eligible assets into the name of your trust. Common examples include:

- Brokerage and investment accounts (outside of retirement accounts)
- Bank accounts
- Business interests
- Real estate
- Cars, RVs, boats, and other titled vehicles

A NOTE ON RETIREMENT ACCOUNTS

Some assets are not owned by the trust outright. Qualified retirement accounts — IRAs, 401(k)s, 403(b)s — along with annuities and life insurance are usually handled by naming the trust (or an individual) as *beneficiary*, where appropriate, rather than re-titling. The right approach depends on your tax picture and should be set with counsel.

How to fund each asset

Real estate	A new deed is prepared transferring the property into the trust and recorded with the county. We prepare and coordinate the deed as part of your plan.
Brokerage accounts	The institution's change-of-ownership form re-titles the account to the trust; a certificate of trust is provided as proof.
Retirement accounts	Where appropriate, a change-of-beneficiary form updates the designation — re-titling is generally not used.

Titled vehicles	Bring the existing title and a certificate of trust to the DMV to issue a new title in the trust's name.
Bank accounts	Complete the bank's ownership-transfer form and provide a certificate of trust.

When to fund

Funding happens after your trust is signed, witnessed, notarized, and executed — it cannot occur before. For assets you acquire afterward, you can take title directly in the trust's name: ask for the deed to be in the trust at a real-estate closing, open new (non-retirement) accounts in the trust's name, and title new vehicles to the trust where appropriate.

| *Drafting creates the plan. Funding is what makes it work.*

WORK WITH US

Speak with Derek.

The conversation begins with a complimentary thirty-minute call.



Derek Carrillo, Esq.

Founder & Managing Attorney · Premier Estate Planning

Every plan at Premier Estate Planning is drafted by the attorney whose name is on the engagement letter. If you would like to discuss what an appropriate plan looks like for your family, reach out directly — there is no obligation, and most callers leave the conversation with a clearer sense of their next steps.

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STEP 01

Consultation

A complimentary thirty-minute call to understand your circumstances.

STEP 02

Flat fee in writing

We outline a path forward and quote one fixed fee — no surprises.

STEP 03

Plan in ~2 weeks

Drafting, review, and an in-office signing. You leave with a bound portfolio.

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